

Place: Whanganui
Present: L R Harvey, Judge
 I Brownlie and M O'Malley, Clerks of the Court
 C E Green, Deputy Registrar
 K Davidson, T Teki and T Kingi, Court Assistants
Date: 22 February 2005

Panui No: 35 **Application No:** A20040006885

Subject: Tuka and Hine-Puororangi Kumeroa Whānau Trust and Kaitangata 5E -
 Transfer of Shares and part Termination of Trust
Legislation: Sections 241 and 164, Te Ture Whenua Māori Act 1993
Present: Lorraine Kumeroa

Details of the Applicant are as follows:

<u>Applicants</u>	<u>Address</u>
Kaye Kumeroa	7 Waratah Drive, Westfield 6111, Perth, Western Australia
Martin Kelvin Kumeroa	947 River Road, RD 6, Parikino, Whanganui

Mrs Tracey Kingi, for Deputy Registrar:

Name of Trust:	Tuka and Hine-Puororangi Kumeroa
Type of Trust:	Whānau Trust
Original Trustees:	Constituted at 47 Aotea MB 29 dated 6 April 1995 Jennifer Jane Bartlett
Current Trustees:	103 Aotea MB 217-246 dated 6 June 2000 Jennifer Jane Bartlett and Sharmaine Te Amo
Trust Order:	119 Aotea 267-270 dated 2 September 2002 Varying Terms of Trust
Summary of Changes to Trust:	Constituted at 47 Aotea MB 29 dated 6 April 1995 Partial Termination of Trust (Martin Kumeroa's shares removed from Trust) 103 Aotea MB 217-246 dated 6 June 2000 Additional Trustee appointed at 103 Aotea MB 217-246 dated 6 June 2000 Trust varied at 103 Aotea MB 217-246 dated 6 June 2000 Further interests added at 103 Aotea MB 217-246 dated 6 June 2000 Further interests added at 106 Aotea MB 88-89 dated 7 July 2001 Partial Termination of Trust (Stewart Kumeroa's

	shares removed from Trust) 119 Aotea MB 267-270 dated 2 September 2002 Trust varied at 119 Aotea MB 267-270 dated 2 September 2002
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This application has been lodged to partially terminate the Tuka and Hine-Puororangi Kumeroa Whānau Trust created at 47 Aotea MB 29 dated 6 April 1995 to which further interests were added at 103 Aotea MB 214-246 dated 6 June 2000. Kaye Kumeroa wishes to extract the share she contributed to the trust in Kaitangata 5E **only** being .1127 and transfer by way of gift to Martin Kelvin Kumeroa. This share came from Hinepuororangi Kumeroa who is Kaye and Martin's mother. Hinepuororangi owned 1 share solely and it was divided equally amongst her seven children.

The trustees have been informed of the application.

Kaye Kumeroa has made application to the Court to transfer her .1127 share to her brother Martin Kelvin Kumeroa as follows:

Aotea District

Block:	Kaitangata 5E
Area:	.9611 hectares
Total Shares in Block:	1
Number of Current Owners: (as at 17 December 2004)	5
Valuation of Block: (as at 1 September 1996)	Capital Value = \$121,000 Land Value = \$7,400 Improvement Value = \$113,600 (Dwelling, Fencing, others)
Donor:	Kaye Francis Kumeroa 7 Waratah Drive Westfield 6111 Perth Western Australia
Donor Shares:	.1127
Shares to be transferred:	.1127 by way of gift
Value of Shares to be transferred:	\$13,636.70 based on above valuation
Donee:	Martin Kelvin Kumeroa 947 River Road RD 6 Parikino Whanganui

Orders are sought partially terminating the Tuka and Hine-Puororangi Kumeroa Whānau Trust and vesting the interest above in the donee.

Court: Is Kaye Kumeroa here?

Mr Martin Kelvin Kumeroa (sworn): No Sir. We've made contact and she gives her apologies. She couldn't come, being in Australia.

Court: Okay. Alright there's also a fax received from Jennifer Bartlett saying that she could not attend today, that she has some misgivings about the application but that she makes no objection.

Mrs Lorraine Kumeroa: Robin Kumeroa also sends his apologies due to work commitments.

Court: And Sharmaine as well?

Mr Kumeroa: Yes.

Court: Kaye is your sister?

Mr Kumeroa: Yes.

Court: She wants to grab her shares out of the whānau trust and give them to you nei.

Mr Kumeroa: Yes.

Court: Well has she consented in writing?

Mr Kumeroa: No Sir.

Court: Well that's a problem then.

Mr Kumeroa: When we spoke to her Sir she's going to come back and in the meantime I'll keep in contact with her in the next month or so.

Court: Well we have her address here as 7 Waratah Drive, Westfield, Perth, so we can write to her and ask her to get a gifting form signed in front of a lawyer.

Mr Kumeroa: I've already sent the forms to her.

Court: Oh I see. Yes well if that's the case then we can't deal with it today until those forms are returned, nei. Also the trustees are your sister, Jennifer and Sharmaine, who as I say says she cannot be here either. Does anyone oppose this in the family? I thought we'd reached agreement that you were going to buy up or have gifted to you all of the shares in the house. That was the plan, nei.

Mr Kumeroa: Can I let Lorraine speak for me on this Sir because of my hearing?

Court: Certainly.

Mrs Kumeroa: No the rest of the whānau were willing to gift the shares and it was only Jennifer and John that had to pay for their shares.

Court: So there are no objections.

Mrs Kumeroa: No.

Court: Alright. I see there are four applications by you Mr Kumeroa concerning this matter plus another block.

Mrs Tracey Kingi, for Deputy Registrar: Excuse me Your Honour. Kaye's signed the 164 application in there and it's been witnessed as well. Kia ora.

Court: And it's been witnessed by Sharon Jackson, Member of Parliament for Hasluck, Western Australia. That's pretty flash. Thank you Mrs Kingi. That's alright then that part of it. Mrs Kingi has just drawn to my attention the fact that the forms have now been received from your sister, they have been witnessed correctly, so we can deal with that gifting. Are there any other persons in Court connected with the application? Does anyone oppose the orders being made for partial termination and gifting? No, good.

The Court makes orders pursuant to Te Ture Whenua Māori Act 1993:

- (a) section 241 partially terminating the Tuka and Hine-Puororangi Kumeroa Whānau Trust by removing .1127 share of Kaitangata 5E contributed to the trust by Kaye Kumeroa;
- (b) section 158 dispensing with the need to file a special valuation; and
- (c) section 164 vesting the .1127 shares of Kaitangata 5E owned by Kaye Kumeroa in Martin Kelvin Kumeroa by way of gift.

Copy of minute to Applicant, trustees and interested parties.

L R Harvey
JUDGE